Text 1

报纸艺术评论的衰落

第 1 段

Of all the changes that have taken place in English-language newspapers during the past quarter-century, perhaps the most far-reaching has been the inexorable decline in the scope and seriousness of their arts coverage.

在过去四分之一世纪英语报纸发生的所有变化中，影响最深远的，或许是其艺术报道在覆盖范围和严肃性方面不可阻挡的衰退。

第 2 段

It is difficult to the point of impossibility for the average reader under the age of forty to imagine a time when high-quality arts criticism could be found in most big-city newspapers. Yet a considerable number of the most significant collections of criticism published in the 20th century consisted in large part of newspaper reviews. To read such books today is to marvel at the fact that their learned contents were once deemed suitable for publication in general-circulation dailies.

对于年龄在四十岁以下的普通读者来说，要想象曾经有一个时代，大多数大城市的报纸上都能找到高质量的艺术评论，是困难到几乎不可能的。然而，20 世纪出版的最重要的评论集当中，相当多的作品在很大程度上由报刊评论组成。今天阅读这些书，人们会惊叹：这些学识丰富的内容，当年竟被认为适合刊登在面向普通大众发行的日报上。

第 3 段

We are even farther removed from the unfocused newspaper reviews published in England between the turn of the 20th century and the eve of World War II, at a time when newsprint was dirt-cheap and stylish arts criticism was considered an ornament to the publications in which it appeared. In those far-off days, it was taken for granted that the critics of major papers would write in detail and at length about the events they covered. Theirs was a serious business, and even those reviewers who wore their learning lightly, like George Bernard Shaw and Ernest Newman, could be trusted to know what they were about. These men believed in journalism as a calling, and were proud to be published in the daily press. “So few authors have brains enough or literary gift enough to keep their own end up in journalism,” Newman wrote, “that I am tempted to define ‘journalism’ as ‘a term of contempt applied by writers who are not read to writers who are’.”

我们距离 20 世纪初至第二次世界大战前夕在英国发表的那些题材不受拘束的报纸评论，就更加遥远了。当时，新闻纸极其便宜，文笔优美的艺术评论被认为能为刊登它们的出版物增光添彩。在那些遥远的日子里，人们理所当然地认为，大报的评论家会对所报道的事件作详细而长篇的论述。他们从事的是一项严肃事业；即使像萧伯纳和欧内斯特·纽曼这样不炫耀自身学识的评论者，也值得人们相信他们十分懂得自己在做什么。这些人把新闻写作视为一种使命，并以作品能在日报上发表为荣。纽曼写道：‘拥有足够才智或文学天赋、能在新闻写作中站稳脚跟的作者如此之少，以至于我很想把“新闻写作”定义为“作品无人阅读的作家用来贬低作品有人阅读的作家的一个词”。’

第 4 段

Unfortunately, these critics are virtually forgotten. Neville Cardus, who wrote for the Manchester Guardian from 1917 until shortly before his death in 1975, is now known solely as a writer of essays on the game of cricket. During his lifetime, though, he was also one of England's foremost classical-music critics, and a stylist so widely admired that his Autobiography (1947) became a best-seller. He was knighted in 1967, the first music critic to be so honored. Yet only one of his books is now in print, and his vast body of writings on music is unknown save to specialists.

不幸的是，这些评论家几乎已经被遗忘。内维尔 · 卡德斯从 1917 年开始为《曼彻斯特卫报》写作，直到 1975 年去世前不久；如今，人们只知道他是一位写板球随笔的作家。然而，在他生前，他也是英国最杰出的古典音乐评论家之一，并且是一位文体风格广受赞赏的作家，以至于他的《自传》（1947 年）成为畅销书。他于 1967 年获封爵士，是首位获得这一荣誉的音乐评论家。但如今，他只有一本书仍在印行，他数量庞大的音乐著述，除专业研究者外几乎无人知晓。

第 5 段

Is there any chance that Cardus's criticism will enjoy a revival? The prospect seems remote. Journalistic tastes had changed long before his death, and postmodern readers have little use for the richly upholstered Vicwardian prose in which he specialized. Moreover, the amateur tradition in music criticism has been in headlong retreat.

卡德斯的评论还有可能重新受到欢迎吗？这种前景似乎很渺茫。早在他去世之前，新闻界的审美趣味就已经改变；后现代读者并不欣赏他所擅长的那种华丽繁复的维多利亚至爱德华时代风格的散文。此外，音乐评论中的业余爱好者传统也一直在迅速衰退。

阅读分析

作者回顾报纸艺术评论曾有的学识与文采，以卡德斯的被遗忘说明其传统衰落，并对复兴前景持悲观态度。文中 amateur 不等于粗劣，而指非职业化的爱好者传统。

直译提示

第 3 段 So few ... that ... 是 ' 如此少，以至于……'；who are 后省略 read，与 who are not read 对照。第 4 段 save to specialists 中 save 意为 ' 除……以外 '。

Text 2

商业方法专利的收紧

第 1 段

Over the past decade, thousands of patents have been granted for what are called business methods. Amazon.com received one for its “one-click” online payment system. Merrill Lynch got legal protection for an asset allocation strategy. One inventor patented a technique for lifting a box.

在过去十年里，数以千计的专利被授予所谓的商业方法。亚马逊公司因其 ‘ 一键式 ’ 在线支付系统获得了一项专利。美林公司的一种资产配置策略获得了法律保护。一位发明者甚至为一种搬起箱子的技术申请并获得了专利。

第 2 段

Now the nation’s top patent court appears completely ready to scale back on business-method patents, which have been controversial ever since they were first authorized 10 years ago. In a move that has intellectual-property lawyers abuzz, the U.S. Court of Appeals for the Federal Circuit said it would use a particular case to conduct a broad review of business-method patents. In re Bilski, as the case is known, is “a very big deal,” says Dennis D. Crouch of the University of Missouri School of Law. It “has the potential to eliminate an entire class of patents.”

现在，美国最高层级的专利审判法院似乎已完全准备好缩减商业方法专利；这类专利自十年前首次获准以来就一直存在争议。美国联邦巡回上诉法院表示，将利用一个特定案件，对商业方法专利进行广泛审查，这一举动让知识产权律师们议论纷纷。密苏里大学法学院的丹尼斯 · D. 克劳奇说，这个被称为 ‘ 比尔斯基案 ’ 的案件 ‘ 是一件非常重大的事情 ’，它 ‘ 有可能取消整整一类专利 ’。

第 3 段

Curbs on business-method claims would be a dramatic about-face, because it was the Federal Circuit itself that introduced such patents with its 1998 decision in the so-called State Street Bank case, approving a patent on a way of pooling mutual-fund assets. That ruling produced an explosion in business-method patent filings, initially by emerging Internet companies trying to stake out exclusive rights to specific types of online transactions. Later, more established companies raced to add such patents to their files, if only as a defensive move against rivals that might beat them to the punch. In 2005, IBM noted in a court filing that it had been issued more than 300 business-method patents, despite the fact that it questioned the legal basis for granting them. Similarly, some Wall Street investment firms armed themselves with patents for financial products, even as they took positions in court cases opposing the practice.

限制商业方法专利权的主张，将是一次重大的态度转变，因为正是联邦巡回法院本身，在 1998 年所谓的道富银行案判决中，通过批准一种汇集共同基金资产的方法专利，引入了这类专利。那项裁决导致商业方法专利申请数量激增。最初申请的是新兴互联网公司，它们试图对特定类型的在线交易取得专有权。后来，更成熟的公司也竞相增加这类专利储备，哪怕只是为了防范可能抢先一步的竞争对手。2005 年，IBM 在一份法院提交文件中指出，尽管它质疑授予此类专利的法律依据，自己仍已获颁三百多项商业方法专利。同样，一些华尔街投资公司也用金融产品专利来武装自己，尽管它们在诉讼案件中采取了反对这一做法的立场。

第 4 段

The Bilski case involves a claimed patent on a method for hedging risk in the energy market. The Federal Circuit issued an unusual order stating that the case would be heard by all 12 of the court's judges, rather than a typical panel of three, and that one issue it wants to evaluate is whether it should "reconsider" its State Street Bank ruling.

比尔斯基案涉及一项针对能源市场风险对冲方法的专利申请。联邦巡回法院发布了一道不同寻常的命令，指出此案将由该院全部十二名法官审理，而不是通常的三人合议庭；它希望评估的问题之一，是是否应当 ' 重新考虑 ' 道富银行案的裁决。

第 5 段

The Federal Circuit's action comes in the wake of a series of recent decisions by the Supreme Court that has narrowed the scope of protections for patent holders. Last April, for example, the justices signaled that too many patents were being upheld for "inventions" that are obvious. The judges on the Federal Circuit are "reacting to the anti-patent trend at the Supreme Court," says Harold C. Wegner, a patent attorney and professor at George Washington University Law School.

联邦巡回法院采取这一行动之前，最高法院最近已作出一系列裁决，缩小了对专利持有人的保护范围。例如，去年四月，大法官们表示，过多针对不言自明的 ' 发明 ' 的专利仍被维持。专利律师、乔治 · 华盛顿大学法学院教授哈罗德 · C. 韦格纳说，联邦巡回法院的法官 ' 正在回应最高法院的反专利趋势 '。

阅读分析

文章由商业方法专利大量出现写起，转向法院可能收紧其范围；重点在政策和司法态度的转变，以及企业一边质疑、一边防御性申请的矛盾行为。

直译提示

第 3 段 if only as ... 表示 ' 哪怕仅仅作为……'，不是 ' 要是……就好了 '；even as 在此突出企业采取相反立场的同时仍申请专利。

Text 3

社会潮流如何扩散

第 1 段

In his book The Tipping Point, Malcolm Gladwell argues that "social epidemics" are driven in large part by the actions of a tiny minority of special individuals, often called influentials, who are unusually informed, persuasive, or well connected. The idea is intuitively compelling, but it doesn't explain how ideas actually spread.

马尔科姆 · 格拉德威尔在《引爆点》一书中认为，' 社会性流行 ' 在很大程度上由极少数特殊个体的行动推动；这些人常被称为有影响力者，他们掌握的信息格外丰富，特别善于说服别人，或者人脉广泛。这种观点直觉上很有吸引力，但它没有解释观念实际上如何传播。

第 2 段

The supposed importance of influentials derives from a plausible-sounding but largely untested theory called the "two-step flow of communication": Information flows from the media to the influentials and from them to everyone else. Marketers have embraced the two-step flow because it suggests that if they can just find and influence the influentials, those select people will do most of the work for them. The theory also seems to explain the sudden and unexpected popularity of certain looks, brands, or neighborhoods. In many such cases, a cursory search for causes finds that some small group of people was wearing, promoting, or developing whatever it is before anyone else paid attention. Anecdotal evidence of this kind fits nicely with the idea that only certain special people can drive trends.

有影响力者被认为十分重要，这源自一个听上去合理、但基本未经检验的理论，称为 ' 传播的两级流动 ': 信息从媒体流向有影响力者，再由他们流向其他所有人。营销人员欣然接受这一理论，因为它暗示，只要找到并影响这些有影响力者，这些精选出来的人就会替他们完成大部分工作。这一理论似乎也能解释某些外观风格、品牌或社区突然且出乎意料地流行起来。在许多此类情形中，粗略地寻找原因会发现，在其他人注意到之前，某个小群体已经在穿着、推广或开发那个后来流行的事物。这类零散事例证据，非常符合 ' 只有某些特殊人物才能引领潮流 ' 的观点。

第 3 段

In their recent work, however, some researchers have come up with the finding that influentials have far less impact on social epidemics than is generally supposed. In fact, they don't seem to be required at all.

然而，在最近的研究中，一些研究人员得出结论：有影响力者对社会性流行的影响，远小于人们通常的设想。事实上，他们似乎根本不是必需的。

第 4 段

The researchers' argument stems from a simple observation about social influence: With the exception of a few celebrities like Oprah Winfrey — whose outsize presence is primarily a function of media, not interpersonal, influence — even the most influential members of a population simply don't interact with that many others. Yet it is precisely these non-celebrity influentials who, according to the two-step-flow theory, are supposed to drive social epidemics, by influencing their friends and colleagues directly. For a social epidemic to occur, however, each person so affected must then influence his or her own acquaintances, who must in turn influence theirs, and so on; and just how many others pay attention to each of these people has little to do with the initial influential. If people in the network just two degrees removed from the initial influential prove resistant, for example, the cascade of change won't propagate very far or affect many people.

研究人员的论点源于对社会影响的一个简单观察：除了奥普拉·温弗瑞这样的少数名人 —— 她们巨大的影响力主要来自媒体影响，而不是人际影响 —— 即便一个群体中最有影响力的人，也根本没有与那么多人交往。然而，按照两级流动理论，恰恰应该是这些并非名人的有影响力者，通过直接影响朋友和同事来推动社会性流行。但是，要发生社会性流行，每一个受到这种影响的人，随后都必须影响自己的熟人，而这些熟人又必须进一步影响各自的熟人，如此继续；究竟有多少其他人关注这些人中的每一个，与最初那位有影响力者并无多大关系。例如，如果网络中与最初影响者只隔着两层关系的人就表现出抗拒，那么这种连锁变化就不会传播得很远，也不会影响很多人。

第 5 段

Building on the basic truth about interpersonal influence, the researchers studied the dynamics of social influence by conducting thousands of computer simulations of populations, manipulating a number of variables relating to people's ability to influence others and their tendency to be influenced. They found that the principal requirement for what is called "global cascades" — the widespread propagation of influence through networks — is the presence not of a few influentials but, rather, of a critical mass of easily influenced people.

以这一关于人际影响的基本事实为基础，研究人员通过对人群进行数千次计算机模拟，研究了社会影响的运行机制，并操控了与人们影响他人的能力及被影响的倾向有关的若干变量。他们发现，所谓 ' 全局级联 '—— 即影响通过网络广泛传播 —— 的首要条件，不是少数有影响力者的存在，而是有一批数量达到关键规模、容易受到影响的人。

阅读分析

文章先介绍并解释流行的 ' 两级传播 ' 理论，再以研究结果反驳对少数影响者作用的夸大，强调网络中足够多的易受影响者对广泛扩散的重要性。

直译提示

第 4 段 a function of 表示 ' 取决于……的结果 '；第 5 段 not ... but, rather, ... 对照的是少数影响者与达到关键规模的易受影响人群。

Text 4

银行资产估值与会计准则的独立性

第 1 段

Bankers have been blaming themselves for their troubles in public. Behind the scenes, they have been taking aim at someone else: the accounting standard-setters. Their rules, moan the banks, have forced them to report enormous losses, and it's just not fair. These rules say they must value some assets at the price a third party would pay, not the price managers and regulators would like them to fetch.

银行家们在公开场合一直为自己的困境责备自己。但在幕后，他们一直把矛头指向别人：会计准则制定者。银行抱怨说，准则迫使它们报告巨额损失，这实在不公平。这些准则要求它们按照第三方愿意支付的价格为某些资产估值，而不是按照管理者和监管者希望这些资产卖出的价格估值。

第 2 段

Unfortunately, banks' lobbying now seems to be working. The details may be unknowable, but the independence of standard-setters, essential to the proper functioning of capital markets, is being compromised. And, unless banks carry toxic assets at prices that attract buyers, reviving the banking system will be difficult.

不幸的是，银行的游说现在似乎正在奏效。具体细节也许无法知晓，但准则制定者的独立性正在受到损害，而这种独立性对于资本市场的正常运作至关重要。此外，除非银行以能够吸引买家的价格对有毒资产进行账面计价，否则，要重振银行体系将会十分困难。

第 3 段

After a bruising encounter with Congress, America's Financial Accounting Standards Board (FASB) rushed through rule changes. These gave banks more freedom to use models to value illiquid assets and more flexibility in recognizing losses on long-term assets in their income statements. Bob Herz, the FASB's chairman, cried out against those who "question our motives." Yet bank shares rose and the changes enhance what one lobbying group politely calls "the use of judgment by management."

在与国会经历了一场令人受挫的交锋之后，美国财务会计准则委员会（FASB）仓促通过了规则修改。这些修改给予银行更大的自由，可以使用模型为难以变现的资产估值，并让银行在利润表中确认长期资产损失时拥有更大的灵活性。FASB 主席鲍勃·赫兹强烈反对那些‘质疑我们动机’的人。然而，银行股上涨了，而这些修改强化了某个游说团体委婉地称为‘管理层判断的运用’的做法。

第 4 段

European ministers instantly demanded that the International Accounting Standards Board (IASB) do likewise. The IASB says it does not want to act without overall planning, but the pressure to fold when it completes its reconstruction of rules later this year is strong. Charlie McCreevy, a European commissioner, warned the IASB that it did "not live in a political vacuum" but "in the real world" and that Europe could yet develop different rules.

欧洲各国部长立即要求国际会计准则理事会（IASB）采取同样的行动。IASB 表示，它不想在缺乏总体规划的情况下行动，但是，在今年晚些时候完成规则重构时，它所面临的屈服压力十分强大。欧盟委员查理·麦克里维警告 IASB，它 ' 不是生活在政治真空中 '，而是 ' 生活在现实世界中 '，而且欧洲仍有可能制定不同的规则。

第 5 段

It was banks that were on the wrong planet, with accounts that vastly overvalued assets. Today they argue that market prices overstate losses, because they largely reflect the temporary illiquidity of markets, not the likely extent of bad debts. The truth will not be known for years. But banks' shares trade below their book value, suggesting that investors are skeptical. And dead markets partly reflect the paralysis of banks which will not sell assets for fear of booking losses, yet are reluctant to buy all those supposed bargains.

真正脱离现实的是银行：它们的账目曾严重高估资产。如今，它们又辩称，市场价格夸大了损失，因为这些价格在很大程度上反映的是市场暂时缺乏流动性，而不是坏账可能达到的程度。真相要多年以后才能知晓。但是，银行股票的交易价格低于其账面价值，这说明投资者持怀疑态度。而且，市场的停滞在一定程度上反映了银行自身的瘫痪：它们害怕将损失入账而不愿出售资产，却又不愿购买那些所谓的便宜货。

第 6 段

To get the system working again, losses must be recognized and dealt with. America's new plan to buy up toxic assets will not work unless banks mark assets to levels which buyers find attractive. Successful markets require independent and even combative standard-setters. The FASB and IASB have been exactly that, cleaning up rules on stock options and pensions, for example, against hostility from special interests. But by giving in to critics now they are inviting pressure to make more concessions.

要使体系重新运作，损失就必须被确认并得到处理。美国购买有毒资产的新计划不会奏效，除非银行把资产计价调整到买家认为有吸引力的水平。成功的市场需要独立、甚至敢于抗争的准则制定者。FASB 和 IASB 过去恰恰就是这样，例如，它们曾顶住特殊利益集团的敌意，整顿股票期权和养老金方面的规则。但是，它们现在向批评者让步，正是在招致要求作出更多让步的压力。

阅读分析

作者反对银行通过游说放松资产估值规则，认为及时确认损失及维护准则制定者的独立性，才有助于恢复市场运作。银行自己的解释与作者的判断需要分清。

直译提示

第 5 段 for fear of ... 说明银行不卖资产的原因；末段 unless 引出必要条件，作者不是断言购买计划在任何条件下都不可能奏效。